

FEDERAL MARITIME COMMISSION
Office of Administrative Law Judges

20230930-DK-BUTTERFLY-1, INC., *Complainant*

v.

BAL CONTAINER LINE CO., LIMITED, *Respondent*.

DOCKET NO. 25-01

Served: September 12, 2025

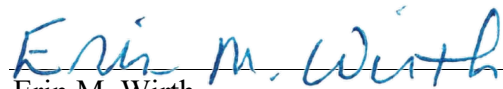
ORDER OF: Erin M. WIRTH, *Chief Administrative Law Judge*.

ORDER ON PENDING MOTIONS

On September 10, 2025, Complainant filed its second motion to compel discovery (“Compel Motion”). On September 11, 2025, Respondent filed an unopposed motion for third amended scheduling order (“Extension Motion”) requesting an extension of forty-five days for the remaining deadlines. On September 12, 2025, Complainant filed a response to the Extension Motion. Also on September 12, 2025, Respondent’s counsel sent an email to my office requesting a ruling on its Extension Motion filed yesterday evening.

Respondent has already received thirty days of additional time to provide the discovery that was ordered in the July 16, 2025, Order on Motion to Compel. *See* August 13, 2025, Second Revised Scheduling Order. In its response to the Compel Motion, Respondent should address the Complainant’s arguments but should also specify what discovery searches have already been run, the number of pages provided to Complainant and the dates they were provided, and an explanation of the delays in providing the discovery compelled two months ago. Given the delays in this case, Respondent shall file its response to the Compel Motion by September 17, 2025, and no extensions will be provided.

After the Compel Motion is fully briefed, an order will be issued on the Extension Motion. Due to the failure to timely raise these issues, the deadline for providing compelled documents will need to be extended. However, it is unlikely that the requested forty-five days will be granted. Moreover, discovery delays may not justify extending the briefing schedule. The parties are strongly encouraged to provide as much discovery as possible, as soon as possible, so that they can show they are providing discovery in good faith. Failure to provide discovery ordered may lead to adverse inferences, dismissal, or a default judgment. *MSC Mediterranean Shipping Co. S.A. v. Fed. Mar. Comm’n*, 141 F.4th 222, 241 (D.C. Cir. 2025) (denying petition for review of default judgment as sanction for failure to provide discovery).


Erin M. Wirth
Chief Administrative Law Judge